

Amendment No. 1 to HB0037

Crawford
Signature of Sponsor

AMEND Senate Bill No. 428

House Bill No. 37*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 56, Chapter 7, is amended by adding the following new part:

56-7-3801.

As used in this part:

(1) "Group insurance plan" means a group insurance plan that covers state employees approved pursuant to title 8, chapter 27;

(2) "Healthcare prescriber" means a prescriber as defined in § 53-10-203;

(3) "Insurer" means an insurer that offers a group insurance plan; and

(4) "Non-opioid treatment" means a drug or biological product that is indicated to produce analgesia without acting on the body's opioid receptors.

56-7-3802.

(a) Except as otherwise provided in this section, an insurer, for purposes of offering a group insurance plan, may adopt or amend a state preferred drug list (PDL).

(b)

(1) In establishing and maintaining the PDL, the insurer shall ensure that a non-opioid drug approved by the United States food and drug administration for the treatment or management of pain is not disadvantaged or discouraged with respect to coverage relative to an opioid or narcotic drug for the treatment or management of pain on the PDL.

(2) Subdivision (b)(1) does not prohibit an opioid medication from being preferred over other opioid medications, or a non-opioid medication from being preferred over other non-opioid medications.

(c) This section applies to a non-opioid drug after it has been approved by the United States food and drug administration for a period of nine months or longer for the treatment or management of pain, regardless of whether the drug has been reviewed by the insurer for inclusion on the PDL. This section also applies to drugs being provided under a contract between the insurer and a pharmacy benefits manager for purposes of a group insurance plan.

SECTION 2. This act takes effect January 1, 2026, the public welfare requiring it.